

STATE OF NEW YORK

7679--A

2025-2026 Regular Sessions

IN SENATE

April 29, 2025

Introduced by Sen. GOUNARDES -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, in relation to membership on the Long Island rail road commuter council, the Metro-North railroad commuter council, and the New York city transit riders council, and in relation to the powers and duties of the permanent citizens advisory committee

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "R.I.D.E.R
2 'Rider Interests Deserve Empowering Representation' Act".

3 § 2. The section heading and subdivisions 1 and 2 of section 1204-e of
4 the public authorities law, the section heading as added by chapter 483
5 of the laws of 1981 and as renumbered by section 2 of part H of chapter
6 25 of the laws of 2009, subdivisions 1 and 2 as amended by chapter 125
7 of the laws of 2022, are amended to read as follows:

8 New York city transit [~~authority advisory~~] riders council. 1. There is
9 hereby created the New York city transit authority advisory riders coun-
10 cil, to study, investigate, monitor, and make recommendations with
11 respect to the maintenance and operation of the New York city transit
12 authority, its subsidiaries, and the Staten Island rapid transit operat-
13 ing authority. Such council shall study and investigate all aspects of
14 the day to day operations of such authority, its subsidiaries and the
15 Staten Island rapid transit operating authority, monitor their perform-
16 ance and recommend changes to improve the efficiency of the operation
17 thereof. Such council shall study and make recommendations in regard to
18 improving bicycle and pedestrian access on trains and buses, and at
19 bridges, stations and other facilities operated by the authority, its

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 affiliates and subsidiaries and the Staten Island rapid transit operat-
2 ing authority and submit such recommendations to the metropolitan trans-
3 portation authority on or before June first, two thousand twenty-two and
4 every five years thereafter.

5 2. Such council shall consist of sixteen members who shall be commu-
6 ters who regularly use the transportation services of such authorities.
7 Of the sixteen members, at least one member shall be a resident of Bronx
8 county, at least one member shall be a resident of Kings county, at
9 least one member shall be a resident of New York county, at least one
10 member shall be a resident of Richmond county, and at least one member
11 shall be a resident of Queens county. Six of such sixteen members shall
12 be appointed by the governor upon the recommendation of the mayor of the
13 city of New York[~~7~~], five upon the recommendation of the public advocate
14 of the [~~city council of the~~] city of New York[~~7~~], and five [~~other~~
15 ~~members appointed upon the recommendation one by each of the borough~~
16 ~~presidents of the boroughs of the city of New York.~~] upon the recommen-
17 dation of local elected officials in consultation with the borough pres-
18 ident of such borough of the city of New York where the member resides.
19 Provided, however, that one member recommended by the mayor of New York
20 shall have a demonstrated expertise or interest in the promotion and
21 development of improved bicycle and pedestrian access at bridges,
22 stations and other facilities operated by the metropolitan transporta-
23 tion authority, as created by section twelve hundred sixty-three of this
24 article, and such authority's affiliates and subsidiaries. The [~~chair-~~
25 ~~man~~] chairperson shall be a member selected by the membership of the
26 committee. Each of the members shall serve for a term of two years[~~7~~
27 ~~provided, however, that of the first appointments, two appointed upon~~
28 ~~the recommendation of the mayor and two appointed upon the recommenda-~~
29 ~~tion of the president of the city council shall serve for a term of one~~
30 ~~year~~]. Vacancies occurring other than by expiration of term shall be
31 filled in the same manner as the original appointments for the balance
32 of the unexpired term but shall be subject to the provisions of subdivi-
33 sion five of section twelve hundred sixty-six-i of this article.

34 § 3. The section heading and subdivisions 1 and 2 of section 1266-d of
35 the public authorities law, the section heading as added by chapter 482
36 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws
37 of 2022, and subdivision 2 as amended by chapter 802 of the laws of
38 2021, are amended to read as follows:

39 Long Island rail road [~~commuter's~~] commuter council. 1. There is here-
40 by created the Long Island rail road [~~commuter's~~] commuter council, to
41 study, investigate, monitor and make recommendations with respect to the
42 maintenance and operation of the Long Island rail road. Such council
43 shall study and investigate all aspects of the day to day operations of
44 such railroad, monitor its performance and recommend changes to improve
45 the efficiency of the operation thereof. Such council shall study and
46 make recommendations in regard to improving bicycle and pedestrian
47 access at bridges, stations and other facilities operated by the Long
48 Island Railroad and submit such recommendations to the metropolitan
49 transportation authority on or before June first, two thousand twenty-
50 two and every five years thereafter.

51 2. Such council shall consist of thirteen members who shall be commu-
52 ters who regularly use the transportation services of such railroad, and
53 who shall be residents of Nassau, Suffolk, Queens, or [~~Brooklyn~~] Kings
54 county. Members shall be appointed by the governor upon the recommenda-
55 tion of local elected officials in consultation with the county execu-
56 tive of [~~each such~~] Nassau or Suffolk county, provided, however, that

1 such members shall be chosen from a list of ten names submitted by each
2 such county executive and provided further however that no more than six
3 members of such council shall be residents of either such county.
4 Provided, however, that one member shall be appointed on the recommenda-
5 tion of a local elected official in consultation with the borough presi-
6 dent of Queens and one member shall be appointed on the recommendation
7 of a local elected official in consultation with the borough president
8 of Brooklyn. Provided, however, that one member ~~[shall be]~~, appointed
9 ~~[who has a]~~ upon the recommendation of a local elected official in
10 consultation with the county executive or borough president of such
11 county or borough where the member resides shall have demonstrated
12 expertise or interest in the promotion and development of improved bicy-
13 cle and pedestrian access at bridges, stations and other facilities
14 operated by the authority and its affiliates and subsidiaries. Vacancies
15 occurring in the membership of the council shall be filled in the same
16 manner as original appointments, provided, however, that if the appoint-
17 ment prior to the vacancy was made upon the recommendation of the Nassau
18 or Suffolk county executive, such vacancy shall be filled from a list of
19 three names submitted by each such county executive, and provided,
20 further, that such appointments shall be subject to the provisions of
21 subdivision five of section twelve hundred sixty-six-i of this title.

22 § 4. The section heading and subdivisions 1 and 2 of section 1266-e of
23 the public authorities law, the section heading as added by chapter 482
24 of the laws of 1981, subdivision 1 as amended by chapter 125 of the laws
25 of 2022, and subdivision 2 as amended by chapter 802 of the laws of
26 2021, are amended to read as follows:

27 Metro-North ~~[rail]~~ railroad commuter council. 1. There is hereby
28 created the Metro-North ~~[rail]~~ railroad commuter council to study,
29 investigate, monitor and make recommendations with respect to the main-
30 tenance and operation of those portions of, if any, the Hudson, Harlem,
31 New Haven, Penn Access, Pascack Valley and Port Jervis commuter railroad
32 lines remaining within the metropolitan commuter transportation
33 district. Such council shall study and investigate all aspects of the
34 day to day operation of such railroad lines, monitor their performance
35 and recommend changes to improve the efficiency of the operation there-
36 of. Such council shall study and make recommendations in regard to
37 improving bicycle and pedestrian access at bridges, stations and other
38 facilities operated by such railroad lines and submit such recommenda-
39 tions to the metropolitan transportation authority on or before June
40 first, two thousand twenty-two and every five years thereafter.

41 2. Such council shall consist of twelve members and shall be commuters
42 who regularly use the transportation services of such railroad lines. At
43 least five of such members shall be residents of the county of Westches-
44 ter. Of the other seven members, at least one of such members shall be a
45 resident of each of the counties of Rockland, Putnam, Dutchess, Orange
46 and Bronx, provided that such county has not withdrawn from the metro-
47 politan commuter transportation district pursuant to section twelve
48 hundred seventy-nine-b of this title; provided further, should only the
49 county of Putnam remain in the metropolitan commuter transportation
50 district then membership on such council shall consist of eight members,
51 six of whom reside in the county of Westchester and two of whom reside
52 in the county of Putnam. Members shall be appointed by the governor. In
53 making such appointments the governor shall consult with and solicit
54 recommendations from local officials and to the extent possible appoint
55 members who represent the ridership of the several commuter railroad
56 lines. Provided, however, that one member shall be appointed who has a

1 demonstrated expertise or interest in the promotion and development of
2 improved bicycle and pedestrian access at bridges, stations and other
3 facilities operated by the authority and its affiliates and subsid-
4 iaries. Vacancies occurring in the membership of the council shall be
5 filled in the same manner as original appointments but shall be subject
6 to the provisions of subdivision five of section twelve hundred sixty-
7 six-i of this title.

8 § 5. Section 1266-i of the public authorities law, as added by section
9 10 of part H of chapter 25 of the laws of 2009, is amended to read as
10 follows:

11 § 1266-i. The permanent citizens advisory committee. 1. There is here-
12 by established a permanent citizens advisory committee. The members of
13 the committee shall consist of the following members: the Long Island
14 Rail Road [~~commuter's~~] commuter council, the Metro-North railroad commu-
15 ter council, and the New York city transit [~~authority advisory~~] riders
16 council, as defined in section twelve hundred four-e of this [~~chapter~~]
17 article.

18 2. Such committee shall serve as a coordinating council of the Long
19 Island Rail Road commuter council, the Metro-North railroad commuter
20 council, and the New York city transit riders council, providing a
21 regional and balanced perspective to such councils' work. Such committee
22 shall be a source of advice to the authority and its subsidiaries and
23 affiliates regarding matters of finance, operations, management, plan-
24 ning, service issues, and the capital program plans established in
25 section twelve hundred sixty-nine-b of this title as well as any other
26 capital plans of such authority. Such committee shall have the same
27 access to information of the authority and its subsidiaries and affil-
28 iates as the Long Island Rail Road commuter council, the Metro-North
29 railroad commuter council, and the New York city transit riders council.

30 3. The metropolitan transportation authority and its applicable
31 constituent agencies shall prepare a response to requests for informa-
32 tion related to such committee's work made by the Long Island Rail Road
33 commuter council, the Metro-North railroad commuter council, and the New
34 York city transit riders council within thirty days of receipt of such
35 request.

36 4. The members of the Long Island Rail Road commuter council, the
37 Metro-North railroad commuter council, and the New York city transit
38 riders council shall receive no compensation for their services but
39 shall be reimbursed for actual and necessary expenses incurred in the
40 performance of their duties.

41 5. Appointments to the Long Island Rail Road commuter council, the
42 Metro-North railroad commuter council, and the New York city transit
43 riders council shall be made as prescribed in section twelve hundred
44 sixty-six-d, twelve hundred sixty-six-e, or twelve hundred four-e of
45 this article, respectively, except that if recommendations for members
46 have not been made by an elected official endowed with the power to make
47 such recommendation in such respective sections within ninety days of a
48 vacancy on the Long Island Rail Road commuter council, the Metro-North
49 railroad commuter council, or the New York city transit riders council,
50 interim appointments may be made upon the recommendation of the execu-
51 tive committee and staff of the permanent citizens advisory committee
52 for the balance of the unexpired term. Notice of such interim appoint-
53 ments described herein shall be included in the official meeting minutes
54 of the permanent citizens advisory committee.

55 6. The committee shall also have employees who do not serve on the
56 commuters and riders councils described in this section, but who are

1 employed by the authority to serve the committee. The authority shall
2 provide appropriate funding for such employees who are selected by and
3 dedicated to the committee, and shall not withhold, withdraw, reduce, or
4 take any other action which threatens or appears to threaten funding for
5 such employees due to the committee and its employees taking editorial,
6 governance, and/or public policy positions which differ from those of
7 the authority.

8 7. The authority shall provide adequate resources and other assistance
9 to the permanent citizens advisory committee, including any assistance
10 and provision of data as will enable it to properly carry out its activ-
11 ities and operations under any provision of this chapter.

12 8. Any intellectual property created or originated by the permanent
13 citizens advisory committee shall be the sole and exclusive property of
14 such committee.

15 9. The permanent citizens advisory committee and the authority may
16 enter into agreements with each other to facilitate the provisions of
17 this section.

18 § 6. This act shall take effect immediately.